

As noted above, the Court finds that Mr. Aloupas' mistake was reasonable. Likewise, the Court finds that any neglect on Mr. Aloupas' part was excusable.

Summary:

Motion to continue the 2/19/2027 trial date is denied. Request to reopen discovery bases on mistake and excusable neglect is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505826	NGUYEN VS NGUYEN	DEMURRER
CASE #	CASE NAME	HEARING NAME
CVRI2505826	NGUYEN VS NGUYEN	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Moving party: Defendant Tam Nguyen, dba Tam Nguyen, Broker

Responding party: Plaintiffs Blossom Nguyen and Tan Van Ta

This real estate action arises between Plaintiffs Blossom Nguyen and Tan Van Ta ("Plaintiffs") and Defendants Lan Le ("Agent"), Tam Nguyen, an individual doing business as Tam Nguyen, Broker ("Broker"), and Lending Chain Inc. ("Lending Chain").

On October 14, 2025, Plaintiffs filed a Complaint against Agent, Broker, and Does 1-20. The operative complaint is the First Amended Complaint ("FAC"), which Plaintiffs filed on March 17, 2026, against Agent, Broker, and Lending Chain as Doe 1. The FAC asserts the following causes of action: (1) Fraud/Intentional Misrepresentation; (2) Conversion (as to Agent only); (3) Breach of Fiduciary Duty; (4) Constructive Fraud; (5) Breach of Contract (as to Agent and Broker only); (6) Negligence/Negligent Supervision (as to Broker only); (7) Fraudulent Business Practices (Bus. & Prof. Code § 17200); (8) Unjust Enrichment/Money Had and Received; (9) Civil Theft/Identity Theft (PC § 496(c); Civ. Code §§ 1798.92; 1798.93); (10) Intentional Infliction of Emotional Distress; (11) Violation of Civil Code § 2079.16 (as to Agent and Broker only); (12) Aiding and Abetting Fraud (as to Lending Chain only); and (13) Negligent Supervision of Mortgage Origination (as to Lending Chain only).

In the FAC, Plaintiffs allege that they are Vietnamese American homeowners who speak English as a second language. Plaintiffs allege that Agent was a close family friend who had assisted them with two prior real estate transactions.

In early 2023, Plaintiffs engaged Agent and Broker to sell their property located at 9422 Hawthorne Avenue, Riverside, California 92503 ("the Property"). The Property had an existing mortgage payoff of \$130,000.00, and the sale was expected to generate \$400,00.00 in net proceeds after the mortgage payoff and escrow fees. On August 30, 2023, the Property was sold for \$565,000.00.

Plaintiffs allege that during the sale process, Agent made numerous misrepresentations that induced Plaintiffs to obtain over 20 cashier's checks totaling over \$118,00.00. Plaintiffs allege that Agent represented that this money was required to close escrow, but misappropriated the funds for herself. Plaintiffs further allege that Broker, Agent, and Lending Chain tricked them into signing a \$263,000.00 cash-out refinance